LES ESSAIS DE BENOÎT &

No. 01 · October 2026

CHEATING

A monthly essay
for a more independent mind.



Dear Friend,

I am writing to you from Tulum, Mexico, where I have spent the last few months finishing The Identity Tax, and decided to endure the sargassum and sweaty walks for another month while we go through this October practice together.

There is something magical about this place. It is designed around nature, rather than the other way around, almost as if the city itself followed the desire path that nature intended. I value that, and I love coming back here.

This is the first issue of Les Essais. You'll notice your name on the cover alongside mine. That's important to me. This isn't something I'm making for you. It's something we're doing together.

It's also the last issue where you get to read my attempt before writing yours, should you decide to stay in November.

I chose Cheating as the experiment and sat with it for a few weeks. I tried to give the question as much of my own thought as I could before reaching for any real outside input.

That's the point of this practice. To retrain our minds to go deep, in the dark, and try to make sense of things ourselves. To resist reaching immediately for someone else's conclusions. To follow a thought far enough that it might surprise us. And then to write down what we find.

I have a feeling there will be fewer and fewer places for this kind of thinking. Places where people can disappear underground for a while, wrestle with an idea, and come back carrying something strange, personal, and entirely their own.

I'm glad we've found a way to keep that kind of correspondence going between us.

I hope you enjoy this first issue.

You'll find the topic for November — the topic you and I will both be living with and writing about for the next 30 days — at the end of this essay. I'll reach back out next month.

Stay curious, Benoit

Write your name next to mine on the cover. Mark it up. Argue in the margins. This practice only works on paper, with a pen.

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CHEATING

Benoît Malige

I have been trying to answer a question since I was twelve and I have never managed it.

The question is what cheating actually is. Whether it's wrong is a different question, and an easier one. I've had a working answer at several points in my life, held it with confidence, and watched each one break under a case it couldn't hold.

So I'm not promising to arrive anywhere. This is me going at it again, in order, with the cases laid out, and being honest about where it stops.

Something about method first. It might end up being the most useful part of this, and you're welcome to steal it.

When a word resists definition, don't begin with definitions. You will only produce a sentence that sounds finished and describes nothing. Begin with cases. Specifically, look for cases that share a structure and split on judgment, because those are the ones carrying information. If two situations are built the same way and we call one of them a crime and the other one genius, then whatever separates them lives somewhere outside the situation, and finding out where is the point of the exercise.

Here are the three I keep returning to.

One.

There's a kid in a French classroom with a glue stick on his desk. Yellow plastic, twist bottom, institutional label. Every kid in the room has one. Nobody looks at it twice, and I think that's the point.

The night before, he peeled the label off with his thumbnail, measured it, and rebuilt it on a computer. Same yellow, same font, same logo. From two feet away it's the object it has always been. In the space that's left he

prints everything he's supposed to have memorized, small enough that he has to lean in, and wraps it back around the tube.

It takes approximately four hours. The exam would have taken two hours to study for. He knows this, but he does it anyway.

The next morning, he sits down. He writes the test.

Two.

A man sits at a blackjack table in a city built for losing money. He plays every hand correctly, which almost nobody does, and he bets small.

What he's doing is keeping a number in his head. Every card that leaves the deck moves it. High cards leaving push it down. Low cards leaving push it up. When the number tells him the cards still in the shoe favor him rather than the house, he raises his bet. When it doesn't, he goes back to the minimum.

That's the whole operation. He has no device, no accomplice, no signal to another player, and no card ever touched in a way it should not be. Arithmetic and memory, performed silently inside his own skull, in a building where the odds are public and printed on a card at every table.

He plays for four hours and leaves ahead.

Three.

Mexico City, 1968 summer Olympic Games. Every high jumper on earth crosses the bar face down, throwing one leg over and rolling the body after it. That's how it has been done for fifty years. It's what coaches teach and what the record books are built on.

An American approaches the bar and turns his back on it.

He goes over head first, spine arched, face to the sky, and lands on his shoulders. It looks like a man falling out of a window. People are laughing in the stadium.

He can do this partly because the pits changed. A decade earlier the landing area was sand and sawdust and coming down on your back would have

ended you. Now it's deep foam. Nobody wrote a rule about which way to face, because for fifty years the question couldn't come up.

He clears the bar.

WHAT HAPPENED TO EACH OF THEM

The athlete is Dick Fosbury. He wins the gold medal. Within a decade every serious high jumper on earth jumps his way and the technique carries his name. Nobody calls him a cheater. He's an innovator, and the sport reorganizes itself around him.

The man at the table breaks no law. There's no statute anywhere that prohibits thinking about cards you have already seen. He's removed from the building anyway, and the casino is entitled to remove him. Private property. They can refuse anyone. He is not arrested. He is escorted out, and his photograph is passed around so the next casino can refuse him at the door.

The kid is caught. It goes in his file. There's a conversation with his parents.

The kid was me.

I was guilty. I have never once believed otherwise, and I'm not building toward the argument that I was misunderstood. What I've never been able to work out is what exactly I was guilty of.

WHAT I ACTUALLY DID

To fit three chapters onto a strip of paper the size of a matchbook, I had to read all three chapters, decide what would actually be tested, discard everything redundant, and compress what remained into the smallest arrangement that would still let me rebuild the rest from memory.

That's a study method. And a demanding one.

I spent four hours doing hard work on the material to avoid two hours of easy work on the material. Then I carried the result into the room. That was the crime.

I did not skip the learning. I did the learning, in a harder format, for the wrong reason, and broke a rule about paper.

The school called it cheating. The school was correct.

But if the exam existed to determine whether I understood the material, and I understood the material, and I understood it partly because of what I did, then the school caught me doing something other than failing to learn. They caught me learning it the wrong way and proving it at the wrong moment.

In the eyes of the school, probably society, and most certainly my parents, that's a real offense. I'm just not sure it's cheating.

THREE DEFINITIONS, AND WHAT EACH ONE COSTS

I tried the obvious definitions anyway.

Cheating is breaking a rule. This is the one I carried longest, and it doesn't survive the three cases above. The man at the table broke no rule and was removed. Fosbury broke no rule and was crowned. Both did the same thing to the rulebook, which is nothing at all, and the outcomes are opposite. Whatever separates them isn't rule-breaking, because neither of them did any.

Cheating is taking an advantage other people don't have. This one held longer than it should have, because it feels fair and fairness is persuasive. It dies on distribution. Every advantage anyone has ever held is unevenly distributed. Better coaching. A quieter house during childhood. A memory that holds numbers. A father who explains compound interest when you're eleven. None of those are called cheating and all of them decide more outcomes than a glue stick would. If uneven advantage is the crime, the whole population is guilty from birth and the word stops meaning anything.

Cheating is deception. The strongest of the three in my opinion, and still wrong. The card counter deceives no one. He sits in the open performing arithmetic in a building that prints the odds on a card at every table. A corporation routing profits through Ireland deceives nobody either. It files the paperwork, the paperwork is correct, every number in it's true.

Meanwhile a man who lies about his golf handicap deceives four people and costs them fifty dollars, and nobody hesitates to call that cheating.

So deception is neither necessary nor sufficient. It shows up in some cases and not in others, so at best it's a symptom.

Three attempts, three failures. I was tempted to try a fourth. Instead I looked at what the three failures had in common, because when things keep failing the same way, the shape of the failure usually tells you something.

All three tried to locate cheating inside the act. Something the person did or didn't do. A property of the behavior itself.

That was the error, and I held it for twenty years without seeing it.

Cheating is not a property of an act. Take any single act, hold it perfectly still, and it changes category depending on who is watching, what they stand to lose, and whether anyone thought to write it down beforehand. The act does not move. The judgment moves around it. An institution can prohibit something on Monday, punish you for doing it on Tuesday, and remove the rule on Friday. The thing you did on Tuesday hasn't changed. Only the rule surrounding it has. So were you cheating because the act was wrong, or because you happened to perform it three days too early?

YOU CANNOT CHEAT GRAVITY

Then the question stopped being about school, because of a thought I couldn't get rid of.

You cannot cheat a physical law. Try to state what that would even mean. Gravity has no rulebook, no enforcement, no intent, nothing to lose. There's no version of you that gets one over on it, no arrangement of cleverness that leaves gravity feeling taken advantage of.

The airplane looks like the exception for a moment. You have two hundred tonnes of metal that leaves the ground and stays there, and everything about the experience feels like a trick pulled on the universe. But it isn't a trick. The airplane obeys a different physical law that was sitting there the entire time, pressure across a curved surface, and gravity remains in full effect for every second of the flight. Nothing was

suspended or broken. Somebody, at some point, read further into the same book than the people standing on the ground.

Now hold that against the man at the table.

He did not break the odds. The odds were printed at every table and he read them more completely than the people selling them. He's doing to blackjack precisely what the wing does to gravity, which is comply with it at a depth nobody else at the table bothered to reach.

Fosbury is the same move a third time. He did not "defeat" the high jump. He noticed the foam had arrived and the technique had not caught up, and he complied with the new physical situation first.

Then there's the oldest trick at any card table: the marked card. A shaded corner, a pinprick on the back, invisible unless you know where to look. The marked card is also compliance. It complies with how human vision works, with what the eye doesn't catch at speed in low light. It's a deeper reading of the real system, and the real system includes the players' perception as one of its components. My glue stick label complied with what a supervising teacher scans for and what he doesn't. Every exploit works this way. It violates one layer of a system by understanding another layer more accurately.

That creates a problem.

Because if cheating were simply breaking the rules, there would be nothing interesting left to say. I cheated. The exam required me to know the information, not smuggle it into the room disguised as stationery. Case closed. Except every system has the rules it announces and the conditions it actually operates under. And some of the people we call cheaters, innovators, hackers, strategists, or geniuses seem to differ less in what they're doing than in which layer of the system they learned to read.

If we follow that all the way down, there's a world in which cheating disappears. A point where no act is intrinsically cheating, because every act is obedience to something, and the only variable is how far down you read.

I do not like this conclusion. It's clean, it follows from everything above it, and it's obviously false. I know the marked card is different from the arithmetic. So do you. Something separates them and I've just built an argument proving that nothing does.

So the physics is right, and it's still not enough.

WHAT SURVIVES THE PHYSICS

I know the marked card is different from the arithmetic. Not as an opinion. As something closer to a fact about my own perception, which sat there intact while I built a perfectly sound case that it should not exist.

So what is the difference between the counter and the marked card. Let’s look at where the money goes. When the counter wins, the casino loses. When the marked card wins, the other players lose. Two different people receive the bill, and my reaction to the two cases splits along exactly that line.

That's promising, so let’s test it before believing it.

First problem. Every act anyone has ever taken produces winners and losers. Somebody always pays. If the mere existence of a cost were the criterion, then buying a coffee from one shop instead of the one next door is a moral event, and the concept dissolves in the other direction, into infinity. So a cost existing can't be enough. It has to be something narrower.

Second attempt: what matters is who agreed to carry the cost. Let’s run everything we have so far through that.

The casino. They wrote the rules. They set the odds, printed them on a card at every table, built a room specifically for the purpose, and invited a stranger to sit down and try to beat them. The house edge is their protection and it's one they designed. When a man with a better memory takes money off them, that loss is entirely inside the terms they authored and published. They signed for it.

This is why he's escorted out and not arrested. Everyone involved understands, at some level below argument, that he hasn't taken anything he wasn't offered. So they eject him, which they're entitled to do, and there's no police report, because there's no crime.

The marked card. The other players sat down for a game where the deck was neutral. That's the entire basis of their consent. They didn't agree to a game where one man knows the back of every card, and if they had known, they wouldn't have sat down. The cost lands on people who never signed. That's theft, plain and simple, and the law agrees.

Fosbury. No bill at all. Nobody in Mexico City was worse off because a man went over the bar backwards. Every other jumper was free to do the same thing the next morning and within a decade all of them did. There's no victim anywhere in the situation, which is precisely why the sport absorbed him instead of expelling him.

The golf handicap. Four people agreed to a game whose whole structure depends on the honesty of the number. The number is false. They pay fifty dollars they never agreed to lose. Small and unglamorous, and built exactly like the marked card.

My glue stick, which is the one I actually care about. Nobody paid. The other students in that room weren't graded against me on a curve, so my mark took nothing from theirs. My parents weren't out any money. The teacher lost nothing but the reliability of one afternoon's measurement.

That's the cost: a measurement stopped working.

And a measurement is not a person. It cannot be wronged. It has no standing, no interest, nothing to be taken from it. The exam existed to detect whether I understood the material, and the material was in my head. The instrument broke while its reading stayed accurate. So the offense was real and it wasn't the offense anyone means when they say cheating. It was interfering with an instrument.

WHERE THIS LEAVES US

So here is what I had: cheating is a bill, and the question is whether the person receiving it ever signed. That seems pretty clean. It handles all five cases without me having to bend anything. It explains why the counter is thrown out but not charged, why Fosbury is a hero, why a fifty dollar golf lie is worse than a four hour forgery. It even explains why I've never

felt guilty about the glue stick and have also never argued that I was innocent. Both are true. I broke something, and it was not a person.

I held this for a while, and I would have told you it was the answer.

THE CRACK

The problem showed up when I asked who decides what counts as a cost.

Take the casino again. I said they signed for the counter's winnings because they wrote the game. But they don't think they signed for it. They think a man is taking money that belongs to them, and they act on that belief, and they're permitted to act on it. The ejection is legal. The photograph passed to the next casino is legal. In some places, so was a great deal worse.

There's no neutral position from which to settle that, because a cost is really a claim about what someone was entitled to.

And entitlements are written by whoever has the power to write them.

So my clean answer has a hole in the middle exactly the size of the original question. I said the judgment moves around the act. Then I said the judgment follows the bill. But the bill is itself a judgment, issued by whoever is in a position to issue it, and I have not escaped anything. I have moved the problem one room over.

So the next question is who gets to decide who was owed what, and how that decision gets made, and what happens to a person who is on the wrong side of someone else's entitlement.

And that question turns out to have a history.

I want to stay with the man at the blackjack table, because his story has an ending I didn't know when I started thinking about this.

His name was Ken Uston. In January 1979 the New Jersey Casino Control Commission changed a blackjack rule in a way that, without meaning to, made counting considerably more effective. A few weeks later, Resorts International threw him out. He fought it.

In May 1982 the Supreme Court of New Jersey ruled for him. Their reasoning was narrow and technical. New Jersey had built a full regulatory apparatus for casinos, which meant the Commission and not the individual casino held the authority to decide how a licensed game may be played. The Commission had never banned counting. So Resorts couldn't ban it either.

Atlantic City casinos haven't been able to exclude card counters since. Cross a state line and they can, and do, and maintain shared lists of faces to refuse at the door.

Same man. Same arithmetic. Same deck. In one state he's a customer with a protected right to sit at the table. In another he's a threat to be photographed and circulated. Nothing about the act changed. The state line changed.

But the part I keep coming back to is what the Commission did next.

Having lost the ability to remove counters, they didn't appeal to fairness or reopen the moral question. As the story is usually told, they ordered the casinos to shuffle more often. Shorter penetration into the shoe, fewer cards seen before the deck is reset, and the counter's edge quietly collapses without anyone being excluded from anything.

They couldn't win the argument about who was owed what, so they changed the physics of the table instead.

I find that almost admirable. When the moral argument stopped working, nobody conceded anything. They just rebuilt the table until the argument no longer mattered.

THE SAME MOVE, OLDER

Once I saw the shape I started finding it everywhere behind me.

For most of English history, ordinary people held real rights over land they didn't own. Gathering fallen wood, grazing animals on the common, taking game. These weren't crimes and they weren't charity. They were customary entitlements, as solid in practice as any deed, and for a great many families they were the difference between eating and not.

Then, across roughly two centuries, thousands of individual acts of Parliament enclosed those commons into private hands. The land didn't move. The people didn't change what they were doing. But the same walk into the same wood to pick up the same fallen branch stopped being a right and became theft.

The Black Act of 1723 went further and made a list of offenses involving deer, hares, and fish into capital crimes. Men were hanged for taking animals their grandfathers had taken legally.

Nobody in that story is cheating in any sense I can construct. A man is doing exactly what his family has done for two hundred years. What changed is that somebody with the power to write entitlements wrote a new one, and his unchanged behavior fell on the wrong side of it.

Go back further and you find the guilds doing a smaller version of the same thing. A craftsman who worked outside the guild was called an interloper, which is a word about permission, and nobody was complaining about his workmanship. His offense was doing competent work without belonging to the body that had reserved the right to do it.

WHERE THE HISTORY LEAVES IT

So I had a clean answer, which was that cheating is a bill delivered to someone who never signed for it. The history leaves it standing, but it shows me something worse: the signature is issued by the same party that decides what is owed.

The casino writes the game, defines what belongs to it, and then declares the counter a thief by its own accounting. Parliament defines the common as private, and the woodgatherer becomes a criminal without moving.

In every case the person called the cheater has done nothing except operate accurately inside a system, and the definition of the offense was written by whoever stood to lose when they did.

I keep landing on one sentence, and I don't entirely trust it:

Cheating is whatever the author of the rules cannot afford.

It fits everything. The casino cannot afford Uston. The landowner cannot afford the commons. The school cannot afford a boy who proves the exam does not measure what it claims to. And Fosbury is not a cheater for the simple reason that nobody who wrote the high jump rules lost a thing when he turned around.

It's also too neat, and it has a hole I can see from here.

Because if that were the whole story, then every rule is a racket and the marked card is fine, and I've already established that the marked card isn't fine. The players at that table were owed something and they were robbed, and no amount of pointing at guilds and enclosure makes that untrue.

So there are two kinds of entitlement in play and I've been treating them as one. There's the entitlement someone assigned themselves because they had the power to write it down. And there's the entitlement you get from having sat down in good faith on terms you were told were true.

What separates them is whether the person carrying the cost ever had the standing to say no.

THE STANDING TO SAY NO

Having that standing takes two things, and they fail in different ways.

You have to know the actual terms. And you have to be able to decline.

Run the cases again, and this time watch which of the two breaks.

The men at the marked table knew they could walk away. Nobody held them there. What they didn't have was the first condition. They agreed to a game in which the back of every card was blank, and they were in a different game, and the terms they consented to weren't the terms they were playing under. Consent obtained by describing something falsely is only the appearance of consent, which is what the deception was for.

Uston and the casino had both. Resorts knew exactly what counting was, knew a man could learn it, knew the odds they had published, and opened the doors anyway. They could have closed. They could have used a different game. They understood the terms better than anyone alive and they chose to

sit down. Everything they lost to him fell inside a bargain they authored and could have declined.

Fosbury: nothing to consent to. No cost anywhere.

Relationships make this harder. Two people explicitly agree to be monogamous and one sleeps with somebody else. Easy case. Known terms, freely accepted, secretly violated. But most relationships don't come with a rulebook. Is flirting cheating? Porn? Dinner with an ex? An emotional relationship with someone you insist is only a friend? Two people can disagree completely about where the line is without ever having explicitly drawn it.

And yet there's usually a point where someone starts hiding what they're doing. A message gets deleted. A name disappears from a story. The phone turns over when someone walks into the room.

I already rejected deception as the definition of cheating, and I still do. But maybe deception is sometimes evidence that the person doing it knows an agreement exists even when nobody ever put it into words. That gives my test another problem. Apparently you can violate terms nobody explicitly negotiated.

Then there is the kid.

He is twelve. He did not choose to be in that classroom. Attendance is compulsory and enforced by the state. He did not agree to the exam, did not agree to the syllabus, did not agree that ninety minutes without paper is a valid measure of whether a person understands three chapters of anything. He could not decline. There is no version of that morning where he says the terms do not work for me and walks out with his position intact.

He was not a party to the agreement. He was the subject of it.

That does not make him innocent. I keep saying this and I mean it. But it does mean the moral machinery I've been building has almost nothing to grip, because every part of it depends on a person who could have said no.

WHAT ALMOST NOBODY SIGNED

And once I noticed that, it wasn't just about a twelve-year-old anymore.

I did not agree to the currency I am paid in. I did not agree to the borders that determine which passport I hold and therefore which countries will let me in. I did not agree to the tax code, the property arrangements, the schooling, the language I think in, or the specific distribution of who owned what on the day I was born. All of it was settled before I arrived, by people who are dead, and I was entered into it at birth without being consulted and without any mechanism by which I could have declined.

The standard answer to this is that I consent by staying. I could leave, and I don't, so I have agreed.

That answer is much weaker than it looks. David Hume took it apart nearly three centuries ago, with an image I've never been able to shake: a man carried onto a ship while asleep, who is told on waking that he freely consents to the captain's authority because he's at liberty to jump into the sea. Leaving requires money, papers, another country's permission, and somewhere to go. The people with the least ability to leave are precisely the people the arrangement costs the most. Their staying is offered as proof they agreed.

The test works at a card table. Two adults, known terms, either free to stand up. At that scale I can tell you exactly what cheating is, and I can tell you why the counter isn't a thief and the marked card is.

The test does not work at the scale of a life. And the games at the scale of a life are the ones that decide almost everything about what happens to a person.

WHERE IT FAILS

I said I would be honest about the breaks, so here are two.

The first. If a bill is only legitimate when the payer could have refused, then almost no social rule qualifies, and that conclusion licenses far too much. I never agreed to the tax code. That doesn't make tax fraud clean, and I'm not able to argue that it does without saying something I know to be false. Somewhere between the card table and the constitution the test stops applying, and I can't mark the point where it happens. I've tried.

Every line I draw is arbitrary, which is the exact accusation I've been leveling at everyone else in this essay.

The second, and this one is worse. Insider trading. A man buys shares knowing something the market doesn't. Nobody at the table pays, because there's no table. The loss is spread across thousands of people who will never know they were on the other side of it, none of whom he deceived, none of whom he ever met. There's no signature anywhere in the transaction, no false description of terms, no identifiable person who was told one thing and given another. By my test it barely registers. It's a felony, and my own reaction to it is that this is correct.

So the test that survived the physics, and survived the history, doesn't survive a diffuse victim. Which suggests something is still missing, and I don't currently know what it is.

WHAT IS LEFT STANDING

Finally, I went to the dictionaries.

They don't agree with one another. Cambridge builds cheating around dishonesty: behaving dishonestly to get what you want. Others build it around unfair advantage. In sport, it's breaking the rules to gain an edge. In school, it's unauthorized help.

Dishonesty cannot be it. Uston was not dishonest. Rule-breaking cannot be it. Fosbury broke no rule. Advantage cannot be it, because every advantage is unevenly distributed. And unfairness cannot be it unless we first agree on what fair means, which is most of the problem.

It's easy to forget that a definition is something people wrote. Somewhere, someone sat with a word like this one and had to decide what to keep and what to leave out, knowing the cases would never quite fit. Every entry is a set of choices, and a few concessions. A definition can be careful, useful, even wise, but it can't be proven the way an equation can. There's judgment in it, which means it can be questioned like any other judgment.

And if the definitions can be questioned, very little is out of reach.

I found that strangely reassuring. A word as ordinary as cheating, one we use without hesitating, has no simple answer, not even among the people whose job is to give one. Apparently this isn't an easy word.

So I don't know what cheating is.

I know considerably more about what it isn't.

. . .

THE NEXT ESSAY

PURPOSE

For our first issue, I chose Cheating. It was a relatively narrow place to begin, but the longer I stayed with it, the more it opened into other things: fidelity, desire, ownership, honesty, biology, morality, identity, relationships.

For November, I want to try the opposite. Purpose. A word big enough to take wherever you want.

Maybe you end up thinking about the purpose of being alive. Whether we need one at all. Whether purpose is something we discover or something we invent. Maybe you wonder whether we need a story that makes suffering tolerable. Whether purpose requires being useful. Where children fit into it. Whether pleasure could be enough.

Those are simply some of the questions that occur to me as I write this. They aren't yours.

Take Purpose through your own life, your own experiences, your own curiosities. Follow whatever part of it you want to understand more deeply. Especially if understanding it might make your existence a little easier to inhabit.

For the next 30 days, you and I will do this separately. I won't know where you're going with it. You won't know where I'm going with it.

Resist reaching for other people's conclusions too quickly. Give your own mind a chance to surprise you.

Next month, I probably won't give you any directions at all. Just a word. For now, consider this practice.

The next issue doesn't exist yet. You and I are about to write it.

Benoit

PURPOSE · FIRST NOTES

First things that come to mind in response to Purpose —
before argument, before editing, just what surfaces.